

# YOUR APPEAL AND REASSESSMENT RIGHTS

*What you can and cannot challenge after the AISH to ADAP move. A plain-language guide, built from Alberta's own rules.*

The Alberta Disability System Breakdown | July 2026

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If you were moved from the Assured Income for the Severely Handicapped (AISH) program to the Alberta Disability Assistance Program (ADAP), you may have been told the switch cannot be appealed. Part of that is true. But the door is not fully closed, and too many people have been left believing it is. This guide lays out, in plain language, exactly what you can and cannot challenge, and the real route back to AISH. Every point here comes from Alberta's own rules, which are listed at the end.

## **The heart of it, in one place:**

You cannot appeal the move itself. But you can be reassessed for AISH at any time, with no deadline. And a new decision that places you on ADAP without a full AISH medical review can be appealed. Reassessment is how a closed door becomes an open one.

## **What cannot be appealed**

Two decisions are closed to appeal, and it is fair that you know this plainly:

- The decision to move you from AISH to ADAP in the July transition. Alberta's rules state this specific decision is not appealable.
- A final decision by the AISH Medical Review Panel that you do not qualify for AISH. Once that panel of health professionals decides, that decision is final.

If someone told you only this part, they were not wrong. They simply did not tell you the rest.

## **What you can appeal**

When you apply or are reassessed, the decision you receive can be challenged in two situations:

- If you are not approved for ADAP at all, you can appeal that decision, or submit new information for a fresh review.
- If you are approved for ADAP but not referred to the AISH Medical Review Panel, you can appeal that decision, or submit new information for a fresh review. This is the important one for anyone who believes they belong on AISH, not ADAP.

## **The two windows, so you get the timing right**

There are two separate clocks, and it helps to know both:

- To formally appeal a decision: generally within 30 days of the day you receive the decision. Note it is from when you receive it, not the date printed on the letter. If your letter arrived late, that matters, and

there is a power to extend the time for a good reason.

- To submit new or additional information for reconsideration: up to 12 months from the decision. This produces a fresh decision on the fuller picture.

So even if the 30 days feels tight, the 12-month reconsideration route gives you room, especially when you are waiting on specialist reports that take weeks to gather.

## The route back to AISH: reassessment

This is the path most people should focus on.

- You can apply to be reassessed for AISH at any time. There is no deadline on it. None.
- The government covers the cost of one medical assessment for this. It is not automatic, so you have to ask for it. Ask, and get their answer in writing.
- How it works: you submit a new Disability Income Assistance (DIA) Application, and it goes through a fresh medical review.

### Why reassessment reopens the door:

The move itself cannot be appealed. But a new application produces a new decision. And a new decision that places you on ADAP without sending you to the AISH Medical Review Panel can be appealed, or reconsidered with new information, within the windows above. So reassessment is not just reapply and hope. It is how you turn the closed door of the transfer into a fresh decision that carries appeal rights.

## What the appeal is really about: your ability

Everything turns on two definitions:

- AISH is for a severe disability that **permanently prevents** employment.
- ADAP is for a severe disability that **substantially impedes**, but does not prevent, employment.

An appeal is, at its core, an argument that your disability permanently prevents employment, so AISH is the right program for you, not ADAP. The case is about your ability, and the medical evidence of it.

## What makes a strong file

These points come straight from the government's own adjudication rules:

- The decision-maker looks at how your condition affects your daily functioning, across areas like moving around, personal care, thinking and learning, everyday tasks, and social and daily-life tasks, each rated from no limitation to severe.
- A diagnosis by itself is not enough. Your doctor should document how your condition affects your ability to hold steady, reliable work, including whether it is unpredictable, recurring, or permanent.
- Episodic and recurring conditions can meet the AISH bar. The rules recognize that the cumulative effect of conditions that come and go can amount to a severe disability.

- Get your supporting evidence in front of the decision-maker before the decision is made. An appeal panel can generally only look at what the decision-maker already had.

## Your steps

- 1. Read your decision letter for the exact reason. If it is unclear, ask them in writing to tell you specifically what was missing or why.
- 2. If you want back on AISH, apply for reassessment. There is no deadline. Ask, in writing, for the covered medical assessment.
- 3. Gather your specialist reports and functional documentation, and get them in before the decision is made.
- 4. If a decision places you on ADAP without referral to the AISH Medical Review Panel, appeal within 30 days of receiving it, or submit new information within 12 months.
- 5. Do everything in writing, and keep copies and dates.
- 6. Bring it to the group. You do not have to do this alone.

## How we know this: our sources

This guide is built entirely from Alberta's own rules:

- The Government of Alberta's Adjudication Guide (July 2026), which sets out how these decisions are made and which ones can be appealed.
- Bill 12, the Financial Statutes Amendment Act, 2025 (No. 2), which rewrote the appeal sections of the AISH Act.
- Ministerial Order 2026-001, filed as Alberta Regulation 87/2026, signed in April 2026, which lists exactly which decisions are exempt from appeal.

One thing worth knowing. That exempt list bars appeals of the AISH permanently-prevents-employment decision, but it does not bar appeals of the ADAP substantially-impedes-employment decision. That gap is the opening this guide is built on.

### **If you were told you cannot appeal, please come back.**

There is more to it than that, and there is help here. Bring your decision letter to the group and we will walk through your options with you.

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*A note on accuracy: this guide is a plain-language summary of public rules, not legal advice. The deadlines and details for your own case should be confirmed with the program in writing, or with a lawyer.*